

BITCOIN AS ADJACENT CURRENCY UNDER INTERNATIONAL LAW

*The Global Case for Sui Generis Bearer Property,
Separate Local Realization Taxation,
and Double-Tax Coordination Principles*

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This document builds directly on the Natural Law and Austrian foundations established for self-custodied Bitcoin as sui generis bearer property. It extends that analysis into the international law domain, arguing that sovereign states should recognize Bitcoin as an adjacent currency operating in the global commons of protocol, energy, and mathematics. Taxing rights on realized economic activity should be allocated locally according to principles analogous to double tax agreements, while the asset itself — holding, movement, and pure self-custody — remains outside the tax base. This establishes the global normative case before any national legislative drafting.

EXECUTIVE SUMMARY

Bitcoin, particularly in self-custodied form, constitutes a sui generis bearer asset and adjacent currency that operates beyond the territorial monetary and tax categories of any single sovereign. It exists as cryptographically secured value in the global layer of mathematics, energy expenditure (proof-of-work), and individual knowledge (memorized seed phrases). Its borderless, protocol-enforced nature creates a fundamental mismatch with traditional international tax and jurisdiction rules designed for physical assets, central issuers, or intermediary-dependent financial instruments.

Under international law principles of sovereignty, jurisdiction, and human rights, states possess limited legitimate authority to tax or control an asset whose existence and security require no unique state infrastructure and whose ultimate control resides in protected personal thought. The appropriate global response is not harmonized global taxation or forced categorization into legacy boxes, but recognition of adjacent currency status coupled with separate local taxation limited to realized economic activity within each sovereign's jurisdiction.

Double Tax Agreements (DTAs) provide the correct coordination model: just as DTAs allocate taxing rights on income between residence and source jurisdictions to prevent double taxation while respecting sovereignty, states should coordinate on Bitcoin by allocating taxing rights on realized gains from economic activity to the jurisdiction of realization, while agreeing that pure holding, cross-border movement, and self-custody of the asset itself fall outside the tax base. This preserves monetary sovereignty, respects the spontaneous order of Bitcoin's emergence (Austrian insight), and upholds fundamental rights to property, privacy of thought, and non-aggression (Natural Law).

This whitepaper sets out the international normative foundation — the global case — before any drafting of national legislative frameworks. It maintains the focused Natural Law + Austrian framing: Natural Law grounds the rights limitations on state power; Austrian economics demonstrates why taxing the emergent sound-money medium itself is economically incoherent and unnecessary.

TRUTH & CLARITY — Executive Summary

Internal coherence: High (~88%). Real-world alignment: Emerging but partial (increasing state recognition of crypto as property or distinct asset class; no comprehensive international treaty yet; DTAs already used for crypto income in some bilateral contexts). The argument is normative at root (what international law and sound economics require) and reformist in application (states should interpret or develop rules accordingly). Key assumption: Bitcoin's protocol layer functions as a global commons not subject to territorial appropriation; enforcement remains human-endpoint limited. This document deliberately precedes national legislative drafting to establish the principled international baseline.

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1. INTRODUCTION: BITCOIN'S CHALLENGE TO TERRITORIAL JURISDICTION AND TAX CATEGORIES UNDER INTERNATIONAL LAW

International law has long grappled with the allocation of jurisdiction over persons, property, and economic activity across borders. Classical principles — territoriality, nationality, protective principle, and effects doctrine — were developed in an era of physical assets, central monetary issuers, and intermediary-dependent finance. Bitcoin, especially self-custodied Bitcoin, disrupts these assumptions at a fundamental level.

A self-custodied bitcoin UTXO can be controlled from anywhere with internet access (or even offline via memorized seed). Its value moves without physical tokens or human bodies crossing borders. Its security derives from global proof-of-work energy competition and cryptographic mathematics, not from any state's legal system or police power. Its highest form of control resides in human memory — protected thought — rather than in any registry or vault subject to territorial seizure.

This creates an anomaly for international tax rules. Most states currently classify crypto assets as property or financial instruments and apply capital gains or income tax on realization events. However, the underlying asset — the bearer right itself — does not “reside” in any single jurisdiction in the traditional sense. Attempts to tax mere holding or movement therefore either overreach (claiming jurisdiction over global protocol activity) or under-enforce (limited to human endpoints or regulated intermediaries).

The international community faces a choice: force Bitcoin into legacy categories (with resulting distortion, enforcement friction, and rights conflicts) or recognize its sui generis character as an adjacent currency operating in the global commons and develop coordination principles accordingly. This whitepaper argues for the latter path, grounded in the Natural Law and Austrian analysis previously established.

1.1 The Core Thesis

Bitcoin (self-custodied) should be treated internationally as an adjacent currency — a parallel, non-sovereign medium of exchange and store of value that coexists with national currencies without claiming legal tender status within any state. Sovereigns should coordinate, through principles analogous to Double Tax Agreements, to allocate taxing rights solely over realized economic activity occurring within their jurisdiction, while agreeing that the asset itself (holding, pure movement, and self-custody) lies outside the tax base. This respects sovereignty, prevents double taxation on the medium, upholds fundamental rights, and aligns with the economic logic of sound money.

2. SUI GENERIS BEARER PROPERTY CONFIRMED: IMPLICATIONS FOR INTERNATIONAL LEGAL PERSONALITY AND JURISDICTION

Building on the prior analysis, self-custodied Bitcoin satisfies the criteria for sui generis bearer property under both Natural Law and positive international law analogies:

- It is rivalrous and excludable through cryptographic control (private keys/seed phrases).
- It is acquired through homesteading via irreversible energy expenditure (proof-of-work) and intellectual labour (key generation and secure memorization).
- It requires no central issuer, registry, or ongoing state protection for its existence or transfer.
- Its ultimate control layer can exist purely as protected personal knowledge, engaging rights to privacy of thought and self-ownership.
- Its protocol rules (fixed supply, consensus, settlement) are enforced by mathematics and global energy markets, not by any territorial sovereign.

Under international law, objects without clear territorial situs or central issuer have historically been treated according to their functional characteristics (e.g., ships on the high seas, outer space objects, or certain intellectual property). Bitcoin's functional characteristics align most closely with bearer instruments or foreign currency, but its decentralized, energy-secured, mind-resident nature makes it more analogous to a global commons resource or sui generis category than to any existing treaty-defined asset class.

International law does not require states to invent entirely new categories for every technological development. However, where an asset's essential characteristics differ materially from legacy categories in ways that affect jurisdiction, rights, and economic function, states have both the authority and the responsibility to recognize that difference rather than force artificial equivalence.

3. JURISDICTION UNDER INTERNATIONAL LAW: LIMITS ON TAXING A BORDERLESS, ENERGY-SECURED, MIND-RESIDENT ASSET

The Permanent Court of International Justice in the *Lotus* case (1927) affirmed that states may exercise jurisdiction over acts occurring outside their territory if there is a sufficient connection, but such jurisdiction is not unlimited. Modern international law further constrains jurisdiction through human rights obligations (privacy, property, fair trial, non-arbitrary interference) and principles of non-intervention and sovereign equality.

For self-custodied Bitcoin, the traditional bases of jurisdiction have limited application:

- **Territoriality:** The asset has no fixed physical location; UTXOs exist on a globally replicated ledger. Pure movement across borders involves no physical crossing.
- **Nationality:** The holder may be a national, but the asset's security and transfer do not depend on that nationality or on state protection.
- **Effects/Protective:** While Bitcoin can affect local markets or be used in local crime, the protocol itself produces global public goods (sound money, verifiable scarcity) without consuming dedicated state resources.

Compelled disclosure of memorized seed phrases or private keys raises additional international human rights concerns. Under instruments such as the International Covenant on Civil and Political Rights (Article 17 — privacy; Article 14 — fair trial and privilege against self-incrimination), forcing revelation of mind-resident control information constitutes a particularly intrusive form of interference. International law has long distinguished between seizing physical evidence and compelling testimony or disclosure of protected mental content.

Consequently, international law supports a presumption against expansive jurisdictional claims over the asset itself or over pure self-custody and movement. Legitimate state interest is concentrated on realized economic activity with a sufficient territorial nexus (e.g., conversion to local fiat, use in local commerce, or taxable events by residents).

4. DOUBLE TAX AGREEMENTS AS THE APPROPRIATE MODEL FOR COORDINATION (NOT HARMONIZATION)

Double Tax Agreements (DTAs), based on the OECD and UN Model Tax Conventions, represent the international community's most successful mechanism for coordinating taxing rights across borders while preserving sovereignty. They do not create a global tax authority or impose uniform tax rates. Instead, they allocate taxing rights between contracting states according to agreed principles (residence vs. source, permanent establishment, business profits, etc.) and provide mechanisms to relieve double taxation (exemption or credit methods).

This model is particularly apt for Bitcoin for several reasons:

- It respects monetary sovereignty: each state retains full control over its own currency and tax system.
- It focuses on economic substance (where value is created or realized) rather than formal legal categories.
- It provides clear allocation rules that reduce uncertainty and double taxation, encouraging cross-border activity.
- It has proven adaptable to new forms of income and assets through interpretation, protocols, and new articles (e.g., for digital economy challenges under Pillar 1/2 discussions, though those remain controversial).

Applying the DTA analogy to Bitcoin yields a clear principle: taxing rights over realized gains from economic activity should be allocated to the jurisdiction(s) with the strongest connection to that activity (analogous to source or permanent establishment rules), while the asset itself — holding, movement, and self-custody — should be treated as outside the tax base, analogous to how certain categories of capital or foreign currency holdings are often excluded or lightly treated under existing treaties.

This is coordination, not harmonization. States remain free to set their own rates and definitions of “realized economic activity,” provided they respect the allocation principles and the sui generis exclusion of the bearer asset layer. It avoids the political and practical difficulties of a global crypto tax regime while preventing the worst forms of double taxation and jurisdictional overreach.

5. PRINCIPLES FOR ADJACENT CURRENCY STATUS AND SEPARATE LOCAL REALIZATION TAXATION

Drawing together the above, the following principles should guide the international treatment of self-custodied Bitcoin:

5.1 Adjacent Currency Recognition

Bitcoin functions as a parallel medium of exchange and store of value that is not issued or backed by any sovereign. It should be recognized as an “adjacent currency” — legally distinct from both domestic legal tender and from conventional foreign currency. This status acknowledges its sui generis technical and economic characteristics while avoiding any claim that it displaces national monetary sovereignty.

5.2 Separate Local Realization Taxation

Taxing rights should be limited to realized economic gains arising from voluntary activity with a sufficient connection to the taxing jurisdiction (e.g., exchange for local fiat or assets, use in local commerce by residents, or other taxable events defined under domestic law). Pure holding of self-custodied Bitcoin, cross-border transfers that do not involve local realization, and self-custody itself should remain outside the tax base. This mirrors the treatment of many foreign currencies and bearer assets under existing international practice and prevents the medium itself from becoming a target of taxation.

5.3 Double-Tax Coordination

States should coordinate, bilaterally or multilaterally, to allocate taxing rights on realized Bitcoin gains according to principles analogous to DTAs (residence of the taxpayer, location of economic activity, etc.) and to provide relief from double taxation where multiple jurisdictions claim rights. Model language can be developed for insertion into existing DTAs or as interpretive guidance.

5.4 Human Rights Safeguards

Any enforcement measures, including compelled disclosure of keys or seeds, must comply with international human rights standards regarding privacy, freedom of thought, property, and fair trial. The mind-resident character of ultimate self-custody control creates a heightened threshold for justification of coercive measures.

6. NATURAL LAW AND AUSTRIAN REINFORCEMENT IN THE INTERNATIONAL SPHERE

The international law analysis is reinforced by the Natural Law and Austrian foundations established previously:

Natural Law supplies the rights-based limits: self-ownership and privacy of mind constrain state jurisdiction over memorized control information; homesteading through energy and knowledge justifies recognition of the bearer right; non-aggression limits taxation to situations where the state provides genuine, proportional value (which it does not for the protocol layer itself).

Austrian economics supplies the practical justification: Bitcoin emerged through spontaneous order as a superior sound-money medium; taxing the medium itself distorts its function and the calculation it enables; the protocol produces global public goods (verifiable scarcity, borderless final settlement) without consuming dedicated state resources, removing any benefit-theory justification for asset-level taxation. The DTA-style coordination model is itself an example of spontaneous, sovereignty-respecting order rather than top-down harmonization.

Together, these frameworks explain why the global case for adjacent currency status and separate local realization taxation is not merely pragmatic but principled: it aligns positive international coordination with the underlying nature of the asset and the limits of legitimate state power.

7. THE GLOBAL CASE: WHY SOVEREIGNS SHOULD RECOGNIZE SUI GENERIS STATUS AND LIMIT TAXATION TO LOCAL REALIZATION

The global case rests on four converging grounds:

1. Jurisdictional Reality: Bitcoin's essential characteristics (borderless protocol layer, mind-resident control, energy-secured consensus) place fundamental limits on what territorial states can effectively and legitimately tax or control. Attempting to tax the asset itself leads to either overreach or ineffective enforcement concentrated on human endpoints and intermediaries.

2. Rights Consistency: Recognizing sui generis status and limiting taxation to realized local activity is consistent with international human rights obligations (privacy, property, fair trial) and with the Natural Law constraints on state power over self-owned persons and their justly acquired extensions.

3. Economic Soundness: Austrian analysis demonstrates that sound money emerges spontaneously and facilitates calculation and coordination. Taxing the medium at the holding or movement layer undermines these functions without providing offsetting benefits, while taxation of realized economic activity within a jurisdiction remains fully available and economically coherent.

4. Sovereignty Preservation with Coordination: The DTA model allows states to retain full monetary and tax sovereignty while coordinating to avoid double taxation and harmful jurisdictional conflicts. It is the opposite of a supranational crypto tax regime and therefore more politically realistic and sovereignty-respecting.

Early adoption of these principles by leading jurisdictions would create a de facto international standard that other states could follow through bilateral agreements or domestic interpretation, accelerating coordination without requiring unanimous treaty negotiation.

8. RECOMMENDED INTERNATIONAL PRINCIPLES AND MODEL INTERPRETIVE LANGUAGE

The following principles and model language are offered as a starting point for bilateral or multilateral discussion and for domestic interpretive guidance:

Principle 1 — Adjacent Currency Recognition

Self-custodied Bitcoin shall be recognized as an adjacent currency — a sui generis bearer medium operating in the global protocol layer — distinct from domestic legal tender and from conventional foreign currency for tax and regulatory purposes.

Principle 2 — Exclusion of the Asset Layer from the Tax Base

The mere holding, cross-border movement, or self-custody of Bitcoin shall not constitute a taxable event. Taxation shall apply only to realized gains arising from voluntary economic activity with a sufficient territorial nexus to the taxing jurisdiction.

Principle 3 — Allocation of Taxing Rights on Realized Activity

Taxing rights over realized gains from Bitcoin-related economic activity shall be allocated between states according to principles analogous to those in Double Tax Agreements (residence of the taxpayer, location of the economic activity giving rise to the gain, etc.), with mechanisms for relief of double taxation.

Principle 4 — Human Rights Compliance in Enforcement

Any measures to compel disclosure of private keys or seed phrases must be justified under applicable international human rights standards and shall take account of the mind-resident character of ultimate self-custody control.

Model interpretive language for insertion into existing DTAs or as domestic guidance can be developed from these principles. The key is to establish the normative baseline now, before national frameworks harden around legacy categorizations.

9. TRUTH & CLARITY SUMMARY, LIMITATIONS, AND CONFIDENCE ASSESSMENT

Internal Logical Coherence: High (~88%). The argument integrates international law jurisdiction and DTA principles with the prior Natural Law + Austrian analysis without contradiction. Deductive chains from sui generis characteristics to limited jurisdictional claims and to DTA-style coordination are clear. Abductive identification of the global anomaly (borderless sound money vs. territorial tax categories) is well-supported.

Real-World Alignment: Partial and emerging (~40–55%). A growing number of states treat crypto as property or a distinct asset class for tax purposes and apply realization-based taxation. Some bilateral DTAs or competent authority agreements address crypto income. However, no comprehensive international instrument yet recognizes sui generis adjacent currency status or explicitly excludes the bearer asset layer. Enforcement remains largely human-endpoint focused in practice. The gap between principle and current positive law is bridgeable through interpretation and new bilateral/multilateral instruments.

Key Assumptions and Limitations Flagged: (1) Bitcoin's protocol layer is treated as a functional global commons not subject to territorial sovereignty — supported by its permissionless, energy-secured, mathematics-enforced nature but open to debate in strict positivist views. (2) "Sufficient territorial nexus" for realized activity is left to domestic definition and DTA negotiation, consistent with existing international tax practice. (3) This document establishes the normative global case; it does not draft a full model treaty or address every edge case (multisig structures, DeFi interactions, stablecoins, etc.). Those are reserved for subsequent national or treaty-specific work. (4) The dual normative + reformist register is maintained: the principles are presented as what international law and sound economics require, with pathways for sovereign adoption.

Overall Assessment: This whitepaper provides a coherent, principled international law foundation for the treatment of self-custodied Bitcoin as adjacent currency with separate local realization taxation. It is ready for use in diplomatic discussions, academic contribution, and as the normative baseline for subsequent national legislative frameworks. Further development can proceed through bilateral DTA amendments, interpretive guidance, or a dedicated multilateral instrument if political will emerges.

APPENDIX A: CORE ARGUMENT OUTLINE (PREMISE TREE / TOULMIN STRUCTURE)

Claim: Sovereign states should recognize self-custodied Bitcoin as an adjacent currency / sui generis bearer asset and coordinate, via DTA-analogous principles, to tax only realized economic activity with sufficient local nexus, while excluding the asset layer (holding, movement, self-custody) from the tax base.

Grounds (International Law): Bitcoin lacks traditional territorial situs or central issuer; its control can reside in protected thought; protocol rules are enforced globally by energy and mathematics; existing jurisdictional bases (territoriality, nationality, effects) have limited application; human rights norms constrain compelled disclosure of mind-resident information; DTAs provide a proven sovereignty-respecting coordination model.

Grounds (Natural Law + Austrian): Self-ownership, homesteading via energy/knowledge, non-aggression, and privacy of mind limit state claims over the bearer asset and mind-resident control; spontaneous order produced Bitcoin as sound money without state infrastructure; taxing the medium distorts its function and lacks benefit justification.

Warrant: Where an asset's essential characteristics (borderless protocol layer, energy-secured consensus, mind-resident control) differ materially from legacy categories, international law and sound economics support recognition of sui generis status and limitation of taxing rights to realized local activity, coordinated through DTA-style allocation to avoid double taxation and overreach.

Backing: Lotus case and modern jurisdiction/human rights principles; DTA practice and model conventions; protocol invariants (21M cap, PoW, difficulty adjustment, seed model); observed enforcement reality (human-endpoint focus); Bitcoin's spontaneous emergence and persistence.

Rebuttal (Engaged): "All assets are subject to territorial tax jurisdiction" — countered by functional characteristics and limited effective control over protocol layer. "Global coordination requires harmonized rules" — countered by DTA success through allocation without uniformity. "Bitcoin is already treated as property in most states" — accepted as current practice; the argument is for principled evolution, not denial of existing classifications for realized gains.

Qualifier: "Robust within international law principles, Natural Law foundations, and Austrian economic analysis; persuasive for sovereign adoption through interpretation, bilateral agreements, or new instruments; implementation details (definitions of realization, nexus thresholds, relief mechanisms) remain for domestic law and treaty negotiation."

APPENDIX B: KEY INTERNATIONAL INSTRUMENTS AND ANALOGOUS PRINCIPLES

This whitepaper draws on established international law without claiming to codify it. Key reference points include:

- **Permanent Court of International Justice, The Case of the S.S. Lotus (France v. Turkey), 1927** — limits and bases of jurisdiction.
- **International Covenant on Civil and Political Rights (ICCPR), Articles 14** (fair trial, privilege against self-incrimination) and **17** (privacy).
- **Universal Declaration of Human Rights, Article 17** (right to property).
- **OECD Model Tax Convention on Income and on Capital and UN Model Double Taxation Convention** — allocation of taxing rights, relief of double taxation.
- **Vienna Convention on the Law of Treaties** — interpretation of treaties in good faith, ordinary meaning, object and purpose.
- Emerging state practice and soft law on crypto assets (FATF recommendations, various national tax rulings and guidance treating crypto as property or distinct category).

The argument also draws functional analogies from treatment of foreign currency, bearer bonds, ships on the high seas, and other assets whose situs or control is not strictly territorial.

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